

		which when reduced to a judgment on the jury’s verdict E&R Construction, Inc., is now unable to pay.” (Mtn. at 14:12-18.) This contention is essentially the same as the contention that Carney will remain an unsatisfied creditor. Moreover, while Carney argues it is inequitable Cortés used any capital to operate E&R rather than pay Carney, that is also what Carney argues Cortés should have done in light of E&R’s financial struggles as discussed above. Ultimately, in considering all of the relevant factors, the Court does not find Cortés and E&R to be one and the same for establishing alter ego liability. Finally, “a judgment debtor may be added if the equities overwhelmingly favor the amendment and it is necessary to prevent an injustice, even if all the formal elements generally necessary to establish alter ego liability are not present.” (<i>Favila v. Pasquarella</i> (2021) 65 Cal.App.5th 934, 949 [citation omitted].) Carney contends even if alter ego liability is not established, equity requires adding Cortés as a judgment debtor. In doing so, Carney relies on the same arguments in support of the third factor regarding an inequitable result. For the same reasons, the Court does not find the equities “overwhelmingly favor the necessary to amendment” where the formal elements for establishing alter ego liability are not present.
8.	LOS COYOTES KOREAN MEMBER ASSOCIATION VS. AG LOS COYOTES LLC 2024-01406947	MOTION FOR ATTORNEY FEES Defendants AG Los Coyotes, LLC and American Golf Corporation’s motion for attorney fees is GRANTED. Defendants AG Los Coyotes, LLC and American Golf Corporation (collectively, “Defendants”) move for an award against plaintiff Los Coyotes Korean Member Association (“Plaintiff”) for reasonable attorney fees in the amount of \$337,716.25. The Court declines to rule on Plaintiff’s objections (ROA 122) as immaterial to the ruling but the objections are preserved for purposes of appeal. (See <i>Reid v. Google, Inc.</i> (2010) 50 Cal.4th 512, 526 [“the trial court’s failure to rule expressly on any of Google’s evidentiary objections did not waive them on appeal”].) <u>Entitlement to Fees</u> Defendants contend they are entitled to recover attorney fees on two independent grounds: (1) as the prevailing party on the contract claims pursuant to Civil Code section 1717; and (2) as the prevailing defendant on the Consumers Legal Remedies Act (“CLRA”) claim pursuant to Civil Code section 1780, subdivision (e).

Civil Code section 1717

“In any action on a contract, where the contract specifically provides that attorney’s fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney’s fees in addition to other costs.” (Code Civ., § 1717.) “[T]o invoke section 1717 and its reciprocity principles a party must show (1) he or she was sued on a contract containing an attorney fee provision; (2) he or she prevailed on the contract claims; and (3) the opponent would have been entitled to recover attorney fees had the opponent prevailed.” (*Brown Bark III, L.P. v. Haver* (2013) 219 Cal. App. 4th 809, 820.)

Each element is satisfied here. Regarding the first element, Plaintiff sued Defendants for breach of contract and breach of the covenant of good faith and fair dealing, i.e., the first and third causes of action of the complaint, respectively. (Compl., ¶¶ 22-26, 32-35.) In each of those causes of action, Plaintiff identified the Los Coyotes Country Club Rules and Regulations (“Rules and Regulations”) as the contract that Defendants allegedly breached. (Compl., ¶¶ 23, 25, 33-34, Exh. 1.) As part of its damages for each of its contract claims, Plaintiff sought recovery of attorney fees. (Compl., ¶¶ 33, 35, Prayer ¶ 3.)

The Rules and Regulations contains the following attorney fee provision: “If it is required to turn a Member’s account over to a collection agency or institute legal action to collect any dues or charges owed by a Member, or to enforce any provision of these Rules and Regulations against a Member, the Member agrees he or she shall be responsible for all costs of collection, including without limitation reasonable attorneys’ fees incurred and court costs.” (Chung Decl., Exh. 1 at § 11.5.) Accordingly, Plaintiff sued Defendants on a contract containing an attorney fee provision.

Regarding the second element, Defendants prevailed on the contract claims. On 11/18/25, the Court granted Defendants’ motion for summary judgment holding, among other things, that Plaintiff lacked standing and had no contractual relationship with Defendants. (Molen Decl., ¶ 8, Exh. D.)

As to the last element, if Plaintiff had prevailed on its contract claims, it would have been entitled to recover attorney fees. The fee provision awards fees to Defendants in any action it brings “to enforce any provision of these Rules and Regulations against a Member.” Since section 1717 renders the fee provision reciprocal, if a member sues Defendants to enforce any provision of the Rules and Regulations and prevails, the member would be entitled to recover attorney fees. Accordingly, Defendants are entitled to recover their reasonable attorney fees.

Plaintiff contends this action falls outside the scope of the fee provision because this is not a collections or enforcement action against an individual member but, instead, an action brought by a membership organization against the club operators. This argument lacks merit. First, as discussed above, section 1717 applies to make the attorney fee provision reciprocal so that a member or members who successfully sue the club operator are entitled to attorney fees. By alleging it is “an association made up of 316 members” (Compl., ¶ 1), Plaintiff sought to stand in the shoes of each member.

Second, Plaintiff’s contract claims fail within the scope of the fee provision because Plaintiff sued Defendants for breaching the Rules & Regulations regarding raising the membership dues (see, e.g., Compl., ¶¶ 11-15) and Defendants’ management of the food and beverage surcharge (see, e.g., Compl., ¶ 21).

Third, and most importantly, Plaintiff is estopped from asserting that the attorney fee provision does not apply. Plaintiff sought to recover attorney fees as part of its damages for the contract claims thereby invoking the fee provision. Plaintiff cannot have it both ways: “The purposes of section 1717 are thwarted when a party is able to use the threat of fees as a club, and seek to avoid liability for fees later.” (*Int’l Billing Servs., Inc. v. Emigh* (2000) 84 Cal.App.4th 1175, 1186.) “A pleader should not be permitted to threaten a litigant with the prospect of an adverse attorney fees award and avoid the same fate if unsuccessful . . . Such an outcome advances no tenable public policy, but rewards oppressive litigation practices.” (*Id.* at p. 1191.)

Plaintiff next argues section 1717 cannot be invoked to award fees for prevailing on a standing issue. This argument lacks merit as well. “The existence of an enforceable agreement is not a prerequisite to an award of attorneys fees under Civil Code section 1717. That section is available even where the prevailing party succeeds on the theory there was never an enforceable contract.” (*Manier v. Anaheim Business Center Co.* (1984) 161 Cal.App.3d 503, 505-06.) Accordingly, “when a person sued on a contract containing a provision for attorney fees to the prevailing party defends the litigation by successfully arguing the inapplicability, invalidity, unenforceability, or nonexistence of the same contract” the prevailing defendant is entitled to its attorneys’ fees under section 1717. (*Santisas v. Goodin* (1998) 17 Cal.4th 599, 611.)

Lastly, Plaintiff argues the fee provision is uncertain because it only addresses claims brought by Defendants and therefore must be construed against Defendants as the drafters pursuant to Civil Code section 1654. Section 2654 provides: “In cases of uncertainty not removed by the preceding rules, the language of a contract should be interpreted most strongly against the party who caused the uncertainty to exist.” The mere fact that the fee provision is unilateral, without more, does not render it uncertain. Even assuming any slight uncertainty exists, Civil Code section 1717

makes such a provision reciprocal thereby clarifying any purported uncertainty. Thus, section 1654 does not apply.

Based on the foregoing, Defendants are entitled to recover attorney fees on the contract claims pursuant to Civil Code section 1717.

Apportionment

“Where a cause of action based on the contract providing for attorney's fees is joined with other causes of action beyond the contract, the prevailing party may recover attorney's fees under section 1717 only as they relate to the contract action.” (*Reynolds Metals Co. v. Alperson* (1979) 25 Cal.3d 124, 129.) However, “[a]ttorney's fees need not be apportioned when incurred for representation on an issue common to both a cause of action in which fees are proper and one in which they are not allowed.” (*Id.* at pp. 129-30.) “Apportionment is not required when the claims for relief are so intertwined that it would be impracticable, if not impossible, to separate the attorney's time into compensable and noncompensable units.” (*Bell v. Vista Unified School Dist.* (2000) 82 Cal.App.4th 672, 687.)

Here, Plaintiff joined its two contract causes of action with six non-contract causes of action, all of which arose from the same alleged conduct. Defendants successfully defended all eight causes of action in its motion for summary judgment on the same grounds, including that Plaintiff’s lacked standing and lacked a relationship with Defendants. Therefore, the contract and noncontract claims are inextricably intertwined and apportionment is not required.

Plaintiff’s opposition is silent as to apportionment even though Defendants address it in their motion. Plaintiff therefore concedes the issue. (See *DuPont Merck Pharmaceutical Co. v. Sup. Ct.* (2000) 78 Cal.App.4th 562, 566 [“By failing to argue the contrary, plaintiffs concede this issue.”].)

Because apportionment is not required, the Court need not address Defendants’ basis for recovery of fees on the CLRA claim pursuant to Civil Code section 1780, subdivision (e).

Reasonableness of Fees

“[T]he fee setting inquiry in California ordinarily begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.” (*PLCM Grp. v. Drexler* (2000) 22 Cal. 4th 1084, 1095.) A trial court has broad discretion to determine the amount of reasonable attorney’s fees, as an experienced trial judge is in the best position to decide the value of professional services rendered in court. (*Ibid.*)

A party seeking an award of fees has the burden of establishing entitlement to an award, and of documenting the appropriate hours

		spent, and the hourly rates. (<i>569 E. County Blvd. LLC v Backcountry Against the Dump, Inc.</i> (2016) 6 Cal.App.5th 426, 432; <i>Lunada Biomedical v Nunez</i> (2014) 230 Cal.App.4th 459, 486.) In challenging an attorney’s fees request, the burden falls upon the challenging party to point to specific items challenged, with arguments and citation to evidence. General claims that fees are excessive insufficient. (<i>Premier Medical Management Systems, Inc. v. California Insurance Guarantee Association</i> (2008) 163 Cal.App.4th 550, 564.) A party cannot litigate tenaciously and then be heard to complain about the time incurred. (<i>Peak-Las Positas Partners v. Bollag</i> (2009) 172 Cal.App.4th 101, 114.) Defendants seek to recover \$337,716.25 in attorney fees. Defendants’ evidence establishes its counsel spent 438 hours defending the action over 18 months plus 8 hours anticipated for reviewing the opposition, drafting the reply brief, and preparing for and attending the hearing on the Motion. (Molen Decl., ¶¶ 6, 21, Exh. C.) The attorney’s hourly rates are \$600-\$1,000 and the non-attorney hourly rates are \$400-\$575. (Molen Decl. ¶¶ 14-18, Exh. C.) The court finds that the hourly rates and time spent defending the action are within a reasonable range. Plaintiff has not challenged the reasonableness of the amount of fees sought. The motion is GRANTED.
9.	CEBALLOS VS. CEBALLOS 2024-01429970	DEMURRER TO THIRD AMENDED COMPLAINT Defendant Yvonne Ceballos’s Demurrer to the Third Amended Complaint (TAC) is SUSTAINED without leave to amend. Publications made within judicial proceedings or “any other official proceeding authorized by law,” are privileged. (Civ. Code, § 47, sub. (b).) “The usual formulation is that the privilege applies to any communication (1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that have some connection or logical relation to the action.” (<i>Silberg v. Anderson</i> (1990) 50 Cal.3d 205, 212.) “The principal purpose of [the privilege] is to afford litigants and witnesses ... the utmost freedom of access to the courts without fear of being harassed subsequently by derivative tort actions.” (<i>Id.</i> at p. 213.) “For policy reasons, even malicious or fraudulent communications are privileged under Civil Code section 47, subdivision (b).” (<i>Herterich v. Peltner</i> (2018) 20 Cal.App.5th 1132, 1139.) “Courts give the litigation privilege a ‘broad interpretation’ in order to further its principle purpose of protecting ‘access to the courts without fear of...derivative tort actions.’” (<i>People v. Potter Handy, LLP</i> (2023) 97 Cal.App.5th 938, 947.) Here, Plaintiff again claims Defendant’s letter submitted to the Los Angeles Superior Court,